HARBOURLIGHT MEDIA

Clearance Guide: Health Claims

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1. What this guide covers

This guide covers claims that a product benefits health, relieves a condition or has a nutritional quality. It is used by the Clearance Executive who reviews the copy, from the first read until the issue is settled, and by Agency Liaisons advising agencies before they submit.

It arises most often in medicines and health copy, and in less healthy food copy that describes the product as healthy or nutritious. Alcohol copy may state low calories only in the permitted wording.

A claim that the product works better or faster than another product is a comparative claim, and the Comparative Claims guide covers it.

Whether a campaign's spots may be transmitted is a separate question, settled by the category's own code. This guide is about the copy.

2. How it usually shows up

- a voiceover or a super saying what the product does for the body - relieves, clears, boosts, fights or protects
- an onset time or a length of effect, such as relief in minutes or protection all day
- 'clinically proven', a trial result, or a presenter styled as a doctor
- nutrition wording on food or drink, such as full of goodness, high in fibre or a lighter choice
- low calorie or fewer calories on alcohol

3. What the executive checks

For a health or nutrition claim, the Clearance Executive checks, in this order:

1. Write down every health or nutrition claim in the voiceover, the supers and the pack shot.
2. For a medicine, check each claim against the product's licence: the licensed indication, the dose and any onset time.
3. For food and drink, check the product meets the nutrient conditions and the wording is in the permitted form.
4. Ask for evidence behind any claim the licence or the nutrient conditions do not cover, and hold the copy until it arrives.
5. Check that no presenter styled as a doctor endorses the product and nothing suggests it is certain to work.

4. Evidence to ask for

- the product licence and the product's summary of characteristics
- trial results for any onset time or length of effect
- the nutrient analysis for a claim on food or drink
- the permitted wording for a nutrition claim

5. When the copy can be cleared

The copy can be cleared once every claim is covered by the licence, the nutrient conditions or evidence on file, in wording no stronger than the evidence. The usual amendment is to soften a claim to the permitted wording, such as helps relieve in place of a cure, or to drop it.

6. What the agency should do

Before submitting, and when answering a query, the agency should:

- Send the licence, the trial data or the nutrient analysis with the copy, not after the first read.
- Use the permitted wording for nutrition claims and the licensed wording for medicines.
- Keep onset times and lengths of effect to what the evidence states.
- Leave out endorsements by doctors or by presenters styled as doctors.

7. When to ask for a legal review

Ask for a legal review when a claim goes beyond the licence, when the evidence is a single study, or when the agency disputes that the wording is a health claim at all.

The Legal Adviser records the review on the campaign, and its view carries more weight than any other note.

8. Recording the outcome

The outcome is recorded in an update on the campaign: the copy amended, the evidence accepted, or the copy cleared as submitted.

The assessment then recommends one of the decisions open for the campaign, and a Clearance Controller decides, as the Advertising Clearance Policy describes. Copy that cannot be cleared is rejected, whatever its spots' results.